

23STCV11261 23STCV11261

County: los-angeles

Division: Civil Law and Motion

Department: 735

Hearing date: 2026-08-07

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C735%2C08%2F07%2F2026

Source SHA-256: 09d9720164a6bdfe81bfbfdc9a67935a88b51e716ba034cee7142f9e5411f51a

Case Number: 23STCV11261 Hearing Date: August 7, 2026 Dept: 735

William Aghajanian v. Elizabeth Johnson

Defendant Johnson's Motion to Continue

Deposition and Request to Appear Remotely

BACKGROUND

This action arises from a business dispute.

On May 19, 2023, Plaintiff William Aghajanian filed a complaint against Defendant Elizabeth Johnson. Defendant demurred to the complaint, which the Court sustained in part and on May 3, 2024, Plaintiff filed the operative first amended complaint, asserting causes of action for (1) breach of fiduciary duty; (2) intentional interference with prospective economic relations; (3) negligent interference with prospective economic relations; (4) accounting; (5) declaratory and injunctive relief; and (6) UCL violations. On June 3, 2024, Defendant filed an answer to the first amended complaint.

DISCUSSION

Defendant moves for an order continuing the

May 14, 2025 deposition and for a 30-day extension to respond to requests for production. Defendant also requests the Court allow Defendant to appear for deposition via Zoom. Defendant asserts that a continuance is necessary due to Plaintiff's "failure to coordinate the date and time with Defendant."

In

opposition, Plaintiff asserts that the motion is moot and groundless. Plaintiff

represents that Defendant refused to appear for deposition multiple times, resulting in a motion to compel deposition which was granted by the Court on January 9, 2026. Plaintiff represents that Defendant has still refused to sit for deposition despite the Court order. As Defendant has already been ordered to appear for deposition and failed to do so, the Court denies Defendant's motion.

CONCLUSION

The Court denies Defendant's motion to continue deposition.

Plaintiff shall give notice.

Defendant Johnson's Demurrer to First Amended Complaint and Motion to Strike

Defendant demurs to each cause of action on the ground that it fails to state sufficient facts. In opposition, Plaintiff asserts that the demurrer is untimely. The Court agrees.

CCP § 430.40 provides, "A person against whom a complaint or cross-complaint has been filed may, within 30 days after service of the complaint or cross-complaint, demur to the complaint or cross-complaint." CCP § 430.10 allows a party to object to a complaint by demurrer or answer. CCP § 430.30(c) allows a party to demurrer and answer at the same time. Here, Defendant filed an answer to the first amended complaint on June 3, 2024. Defendant did not file this demurrer until May 22, 2025. By filing an answer without filing a demurrer, Defendant waived the right to bring a demurrer. Further, even if the Court were to consider the demurrer, it is untimely by almost a year. The Court overrules the demurrer to the first amended complaint.

Motion to Strike

Defendant moves to strike the first amended complaint on the ground that it fails to state sufficient facts. This is not grounds for a motion to strike. This is grounds for a demurrer under CCP § 430.10. The Court denies the motion to strike.

CONCLUSION

The Court overrules the demurrer to the first amended complaint. The Court denies the motion to strike.

Defendant shall give notice.